

Jammu and Kashmir Accountability Commission (Staff) Rules, 2015

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State of Jammu-Kashmir - Act

Jammu and Kashmir Accountability Commission (Staff) Rules, 2015

JAMMU & KASHMIR

India

Jammu and Kashmir Accountability Commission (Staff) Rules, 2015

Rule JAMMU-AND-KASHMIR-ACCOUNTABILITY-COMMISSION-STAFF-RULES-2015 of 2015

Published on 2 July 2015

Commenced on 2 July 2015

[This is the version of this document from 2 July 2015.]

[Note: The original publication document is not available and this content could not be verified.]

Jammu and Kashmir Accountability Commission (Staff) Rules, 2015

Published vide Notification No. SRO-207 dated 2.7.2015

SRO-207. - In exercise of the powers conferred by section 30 read with sub-section (2) of section 25 of the Jammu and Kashmir Accountability Commission Act, 2002, the Governor here makes the following rules, namely : -

1.

Short title and commencement.

- (i) These rules may be called Jammu and Kashmir Accountability Commission (Staff) Rules, 2015.

(ii)

These shall come into force from the date of publication in the Government Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Cadre" means the cadre of the service ;

(b)

"Commission" means the Jammu and Kashmir Accountability Commission ;

(c)

"Government" means the Government of Jammu and Kashmir ;

(d)

"Schedule" means the Schedules annexed to these rules ;

(e)

"Service" means the Jammu and Kashmir Accountability Commission (Staff) Service ;

(f)

"State" means the State of Jammu and Kashmir.

3.

Constitution of service.

(1)

From the date of commencement of these rules there shall be constituted the Jammu and Kashmir Accountability Commission (Non-Gazetted) Services.

(2)

The Government may, at the commencement of these rules, appoint to the service, any person who at the commencement of these rules is holding in substantive capacity any post included in the cadre of the services.

(3)

Provided that for the purpose of initial constitution of service, the person holding any post in substantive capacity to which he was appointed by the competent authority under rules, be included in the cadre of the service in its sanctioned scale of pay, shall be deemed to have been appointed to the service under these rules if he/she is fully qualified to hold the post under these rules unless he/she opts otherwise with 15 days from the commencement of these rules.

Explanation. - The words 'holding' means a person holding a post included in the cadre of Jammu and Kashmir Accountability Commission (Non-Gazetted) Services in its sanctioned scale of pay on regular basis under orders of the competent authority and will not cover the persons holding a post on ex-cadre/deputation basis or on ad hoc basis or in a stop gap arrangement.

4.

Extent and application.

- These rules shall apply to every employee working in the Commission either substantively against the post or by transfer.

5.

Staff of the Commission.

- (i) The strength and composition of the staff of the Accountability Commission shall consist of such officers/ officials as may be sanctioned by the Government in consultation with the Accountability Commission which shall initially consist of officers and officials reflected in Schedule-I :

Provided that the Government may increase or decrease the said staff strength from time to time.

(ii)

The appointment to the posts specified in Schedule-I shall be made-

(a)

by direct recruitment ;

(b)

by promotion ; and

(c)

by deputation/transfer (with the prior consent of the Commission) as prescribed in the Schedule-II against each post.

(iii)

The staff of the Commission shall be subject to exclusive administrative and disciplinary control and directions of the Commission.

(iv)

The conditions of service of the staff of the Commission shall be governed by the Jammu and Kashmir Civil Service Regulations, 1956 and Jammu and Kashmir Civil Services (Classification, Control and Appeal) Rules, 1956.

6.

Qualification and method of recruitment.

- (i) No person shall be eligible for appointment or promotion to any class, category or cadre in the services unless he/she is in possession of the qualifications/experience as laid down in the Schedule-II of these rules.

(ii)

Recruitment to the service shall be made by transfer, promotion or direct appointment, as laid down in Schedule-II of these rules.

(iii)

The posts in the inferior service other than Class-IV may be filled up through SSB in so far direct recruitment is concerned.

(iv)

The Class-IV posts may be filled up by the Commission as per the standing instructions of the Government issued from time to time.

(v)

The appointment from amongst retired eligible persons against any post may be made by the Government on the recommendations of the Committee to be constituted by the Government and the appointment will be for the period and subject to the terms and conditions as may be applicable in such cases under rules, regulations and orders issued by the Government from time to time :

Provided that a panel of three persons will be prepared by the Committee against each post being filled by re-employment, out of whom the Commission may make recommendation in favour of any of them to the Government for appointment.

7.

Probation.

- (i) Persons appointed to the service either by direct recruitment, or by promotion shall be on probation for a period of two years.

(ii)

The period of probation shall be regulated as per the provisions of the Kashmir Civil Services (Classification, Control and Appeal) Rules, 1956.

8.

Reservation in appointments.

- While making appointments either by promotion or by direct recruitment, reservation shall be available in accordance with the provisions of the Jammu and Kashmir Reservation Act, 2004 and the rules made thereunder as amended from time to time.

9.

Maintenance of seniority list.

- Seniority of the members of the service shall be regulated under the Jammu and Kashmir Civil Services (Classification, Control and Appeal) Rules, 1956. Secretary of the Commission shall maintain an up-to-date final seniority list of the members of the service.

10.

Residual matter.

- In regard to matters not specifically covered by these rules, the members of the service shall be governed by the Rules, Regulations and Orders applicable to the State Civil Services in general.

11.

Interpretation.

- If any question arises regarding interpretation of these rules the matter shall be referred to the Government whose decision thereon shall be final and binding.

I

S. No.

Designation of post

No. of sanctioned posts

Pay scale

1

2

3

3

1.

Sr. Stenographer

2

9300-34800+4600

2.

Public Prosecutor

2

9300-34800+4280

3.

Court Officer

1

9300-34800+4280

4.

Section Officer

1

9300-34800+4600

5.

Jr. Stenographer

Nil

9300-34800+4200

6.

Judgment writers

2

9300-34800+4200

7.

Translators

2

9300-34800+4200

8.

Head Assistants

2

9300-34800+4200

9.

Accounts Assistants

3

5200-20200+2800

10.

Computer Operators

4

5200-20200+2800

11.

Telephone Operators

2

5200-20200+2400

12.	
Sr. Assistants	
3	
5200-20200+2400	
13.	
Drivers	
4	
5200-20200+1900	
14.	
Jr. Assistants	
4	
5200-20200+1900	
15.	
Jamadar	
1	
4440-7440+1650	
16.	
Orderlies	
16	
4440-7440+1300	
17.	
Home Orderlies	
3	
4440-7440+1300	
18.	
Dispatch Rider	
1	
4440-7440+1300	
19.	
Chowkidars	
3	
4440-7440+1300	
Total No. of Posts	
56	
II	
Class	
Category	
Designation of post	
Pay scale	
Minimum qualification for direct recruitment	
Method of recruitment	
1	
2	
3	
4	
5	
6	
I	
Sr. Stenographer	
9300-34800+4600	
-	

By promotion from Class-V having five years substantive service as such, or by deputation from Law Department/GAD/High Court.

II

Public Prosecutor

9300-34800+4280

L. L. B. with three years experience

By deputation from Police Department from the class of prosecuting officers or engagement on tenure basis by the Law Department on the recommendations of the Commission.

III

Court Officer/Master

9300-34800+4280

MBA in case of direct recruitment

By direct recruitment or by deputation from High Court from the category of Court Officers/ Masters or in case of non-availability by re-employment from retired Court Officer/Masters by the Government.

IV

Section Officer

9300-34800+4600

-

By promotion from Class-VIII having an experience of three years as Head Assistant or by deputation from Law Department. However, in case of non-availability of officials from Law Department, by deputation from GAD.

V

Jr. Stenographer

9300-34800+4200

(i) Graduation from any recognized University having minimum speed of 65 and 35 words per minute in shorthand and typewriting having not less than 35 words speed per minute
By direct recruitment or by deputation from Law Department/High Court/GAD

(ii) Six months certificate course in computer application from a recognized institute

VI

Judgment Writers

9300-34800+4200

do.

do.

VII

Translators

9300-34800+4200

L. L. B. with Urdu as one of the subjects at matric level

By direct recruitment or by deputation from Urdu Coordination Cell of Law Department/High Court.

VIII

Head Assistants

9300-34800+4200

-

By promotion from Class-XII having three years experience as Senior Assistant and having passed the Secretariat Assistants Examination or by deputation from Law Department. However, in case of non-availability of officials from Law Department, by deputation from GAD.

IX

Accounts Assistants

5200+20200+2800

-

By deputation from J&K Accounts Subordinate Service

X

Computer Operators

5200+20200+2800

(i) Graduation from any recognized University with knowledge of typewriting having not less than 35 words speed per minute

By deputation from any Govt.

Department/Information and Technology Department.

(ii) Degree/Diploma in computer applications from a recognized institute

XI

Telephone Operators

5200-20200+2400

Minimum Matric and maximum 10+2 with experience in the trade

By deputation from Estates Department.

XII

Sr. Assistants

5200-20200+2400

-

By promotion from class XIV having three years experience as Junior Assistant or by deputation from Law Department. However, in case of non-availability of officials from Law Department, by deputation from GAD.

XIII

Drivers

5200-20200+1900

Matric with valid driving hill license

By deputation from State Motor Garages.

XIV

Jr. Assistants

5200-20200+1900

(i) Graduation from any recognized University with knowledge of typewriting having not less than 35 words speed per minute

(ii) Six months certificate course in computer application from a recognized institute

(i) 75% by direct recruitment

(ii) 25% by promotion from Class-XV by strict seniority qualifying of type test or by and deputation from Law Department. However, in case of non- availability of officials from Law Department, by deputation from GAD.

XV

a

Jamadar

4440-7440+1650

-

By placement from categories b, c, d and e on the basis of seniority.

b

Chowkidars

4440-7440+1300

Minimum Matric pass and maximum 10+2

By direct recruitment.

c

Home Orderlies

4440-7440+1300

do.

By direct recruitment.

d

Dispatch Rider

4440-7440+1300

do.

By direct recruitment.

e

Orderlies

4440-7440+1300

do.

By direct recruitment.

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